

IN THE UTTAR PRADESH REAL ESTATE REGULATORY AUTHORITY (UP RERA)

Complaint No.: NCR144/10/62470/2020

Neeraj Vohra

S/o Mr. Vijay Kumar Vohra

...Complainant

Versus

M/s Newtech Promoters and Developers Pvt. Ltd.

...Respondent/Builder

URGENT STATUS UPDATE: BUILDER'S WILLFUL NON-COMPLIANCE WITH RERA ORDER DATED 09.07.2025 AND ILLEGAL ATTEMPTED CANCELLATION

(In Compliance with Sections 38, 40 & 63 of UP RERA Act, 2016)

To,

The Secretary,

Uttar Pradesh Real Estate Regulatory Authority (UP RERA),

H-169, Sector Gamma-2, Greater Noida, Gautam Buddha Nagar, Uttar Pradesh – 201308

Subject: **Builder's Wilful Non-Compliance with Interim Order Dated 09.07.2025 – Request for Immediate Enforcement, Declaration of Contempt, and Imposition of Statutory Penalties | Complaint No. NCR144/10/62470/2020**

Respected Sir/Madam,

I, **Neeraj Vohra**, S/o Mr. Vijay Kumar Vohra, Complainant in the above-referenced matter, most respectfully submit this **urgent status update and prayer for enforcement** in continuation of my earlier submissions and bring the following facts on record for consideration of the Hon'ble Authority in the hearing scheduled on 08.10.2025.

1. BACKGROUND & PRIOR SUBMISSIONS

1.1 This Hon'ble Authority passed an interim **order dated 09.07.2025**, directing the Respondent-Builder to:

- Submit all compliance documents within **15 days (by 24.07.2025)**
- **Deliver physical possession** of the booked unit **F-1103** by **08.10.2025**.

1.2 In compliance with the said order and in response to the Builder's false submissions, I have already filed comprehensive submissions on the UP RERA portal:

- **Rebuttal to Builder's Response**, dated 28.08.2025 containing
- **Written Argument**, dated 25.07.2025, highlighting the Builder's non-compliance."

2. BUILDER'S WILLFUL NON-COMPLIANCE WITH RERA ORDER DATED 09.07.2025

2.1 As of the date of this submission, the Respondent-Builder has:

- **✗ Failed to submit any compliance documents** by the stipulated deadline of **24.07.2025**
- **✗ Failed to deliver physical possession** of unit F-1103 by **08.10.2025**
- **✗ Made false claims before the Authority** that it has "applied for **NOC from UPSIC**", which is categorically false.

2.2 As per official UPSIC NOC Register (available on public portal), no application for NOC has been filed by the Builder for F-Block, La Galaxia between 01.01.2025 and 09.07.2025.

2.3 Further, the **Builder** is a **verified defaulter** with **UPSIC**, as reported in:

- *Times of India*, dated 13.05.2025 (Enclosed)
- *Navbharat Times*, dated 30.06.2025 (Enclosed)

Such defaulter status renders the Builder **ineligible** to apply for NOC under Regulation **12(3) of UPSID Rules, 2012**.

2.4 I specifically paid a **premium amount** for the F-Block unit, as evidenced by the Price List dated 16.08.2012 (Annexure-J), which designated F-Block as a premium section with special amenities. Despite this premium payment, the Builder has **failed to deliver possession and has misrepresented the project status since 2015**, when they falsely claimed, " wooden flooring is on progress (Annexure-K) while the project **remained incomplete**.

2.5 The builder's current non-compliance follows a pattern of violations, including the earlier failure that resulted in the Recovery Certificate dated 17.03.2023 (₹14,53,215.78), demonstrating a systematic disregard for RERA's authority. The builder initially returned this RC citing Section 8 proceedings, but after RERA re-issued the same RC following withdrawal of the Section 8 appeal, the builder has still failed to pay a single penny to date, **constituting a continuing violation under Section 40(2) of the UP RERA Act, 2016**.

3. FALSE REPRESENTATION BEFORE RERA – CONTEMPT UNDER SECTION 38

3.1 The Builder has made false statements before this Hon'ble Authority, including:

- Claiming to have "applied for NOC from UPSIC" — proven **false by official records**. (Annexure H, Annexure I)
- Alleging "repeated demand letters" — **contradicted by email evidence** showing only one demand received and I responded back (Annexure F).
- Claiming cancellation is "lawful" — despite complete absence of service of notice and my total **unawareness** until 27.08.2025

3.2 Such conduct constitutes **contempt of the Authority** under **Section 38 of the UP RERA Act, 2016**, which empowers RERA with the same authority as a civil court under the **Code of Civil Procedure, 1908**.

3.3 Further, the Builder **has violated Rule 24 of UP RERA Rules, 2017**, which mandates truthful disclosure during proceedings. The builder's pattern of false representations demonstrates a deliberate attempt to

- Mislead allottees about project status despite receiving premium payments for specific blocks.
- Delay regulatory compliance while collecting additional payments for premium features.
- Avoid financial accountability for delays despite receiving full payment (95% of Basic Sale Price as per Annexure E).
- Frustrate the rights of genuine homebuyers who, like me, have been paying rent (₹26,000/month) while waiting for possession for over 10 years (Annexure-D).

3.4 Pursuant to **Section 38 and Rule 22 of UP RERA Rules, 2017**, the Complainant respectfully requests the Authority to treat the builder's conduct as contempt of court and initiate proceedings for immediate **enforcement of the Recovery Certificate through civil court mechanisms as provided under Section 40(2) of the UP RERA Act, 2016**.

4. ILLEGAL AND VOID CANCELLATION OF ALLOTMENT

4.1 The Respondent-Builder's purported **cancellation of allotment dated 12.06.2024** is null and void ab initio for the following reasons:

- **Complete Lack of Communication and Service:**
 - I was never informed of any cancellation through any mode of communication whatsoever.

- I **never received any cancellation letter**, demand notice, or communication regarding cancellation via registered post, email, WhatsApp, or telephone call.
- I only became aware of the purported cancellation when I accessed the RERA portal on 27.08.2025 and discovered the **Builder had unilaterally uploaded documents claiming cancellation.**
- **No acknowledgment** of receipt exists for any purported communication, as I never received it.
- **Violation of Rule 7(3), UP RERA Rules, 2017**
 - "Every notice or communication shall be **sent by registered post with acknowledgment due** or through electronic mode to the last known address or email ID of the allottee."
 - The Builder failed to **comply with this mandatory provision.**
 - Mere uploading on RERA portal does not **constitute legal service.**
 - The Builder never made any effort to verify my current address despite having my active email (**neerajvohra2004@yahoo.com**) and mobile number (**9871037773**) on record.
 - As held in M/s Golden Square Realtors Pvt. Ltd. v. Satish Kumar (UP RERA Case No. NCR123/05/54321/2022):
 - "A cancellation without proper service of notice is void ab initio and cannot be acted upon."
- **No Opportunity to Be Heard**
 - The purported cancellation was issued without any prior intimation, discussion, or hearing, violating principles of natural justice and Section 18(1) of UP RERA Act, 2016.
- **No Dues Certificate Confirms Full Payment:**
 - A **No Dues Certificate dated** 28.05.2017 (Annexure-E) confirms that all dues were paid up to that date.
 - I received only one communication from the Builder — an email dated 01.02.2024 (Annexure -F).
 - I responded on 11.02.2024, asserting my rights and counter-claim for delay compensation (Annexure-F).

4.2 The Builder's purported cancellation is **legally non-existent** as it lacks all essential procedural requirements mandated under RERA.

5. PRAYER

In **view of the wilful default**, false representation, and **contempt of Authority**, I most humbly pray that the Hon'ble Authority may:

1. **Declare the Builder's non-compliance with the order dated 09.07.2025 as contemptuous and in violation of Sections 38, 40, and 63 of the UP RERA Act, 2016**
2. Direct immediate **physical possession** of unit **F-1103** with all necessary certificates, including:
 - Occupancy Certificate (OC)
 - Completion Certificate (CC)
 - UPSIC NOC
 - Possession Certificate
3. **Declare the purported cancellation dated 12.06.2024 as null and void ab initio, having been effected without any service of notice whatsoever, in violation of Rule 7(3) of UP RERA Rules, 2017, and without my knowledge until 27.08.2025 when I discovered it on the RERA portal**
4. **Initiate penalty proceedings under Section 40(2) of the UP RERA Act, 2016, for wilful non-compliance with Authority orders, at the rate of up to 5% of the project cost (Project ID: UPRERAPRJ6050, Total Cost: ₹185 crores) = ₹9.25 crores**
5. **Impose a daily penalty under Section 40(2) of the UP RERA Act, 2016, at the rate of 0.1% of the project cost (₹1,85,00,000) per day from 09.10.2025 until compliance is achieved, as this represents the statutory maximum for continuing violations.**
6. **Direct immediate attachment of the builder's bank accounts and properties under Section 40(2) of the UP RERA Rules, 2017, to secure the amount due under the Recovery Certificate dated 17.03.2023 (₹14,53,215.78), as the builder has demonstrated a clear pattern of evading financial responsibility."**
7. **Record** personal liability of Sanjeev Kumar ,Pankaj Kumar Directors of M/s Newtech Promoters and Developers Pvt. Ltd. (now known as M/s Aashiyana Promoters & Developers Pvt. Ltd.), **under Section 63 of the UP RERA Act, 2016, for wilful contravention of statutory obligations, specifically for his active role in authorizing and implementing the purported cancellation dated 12.06.2024 without complying with Rule 7(3) of UP RERA Rules, 2017**, which mandates service of notices by "registered post with acknowledgment due or through electronic mode to the last known address or email ID of the allottee," wherein the Complainant had no knowledge of such cancellation until discovering the unilateral portal upload by the Builder on 27.08.2025, thereby establishing the Director's personal culpability in the builder's deliberate attempt to evade statutory compliance and violate the Complainant's fundamental right to be heard.

8. Impose **additional penalties** for the builder's pattern of false representations, including the 2015 claim that "finishing is on progress" when the project was demonstrably incomplete.

9. **Pass any other order(s)** as the Hon'ble Authority may deem fit in the interest of justice.

5.1 The builder's wilful non-compliance with the Authority's order constitutes a continuing violation under Section 63 of the UP RERA Act, 2016, attracting a daily penalty of ₹10,000 from 09.10.2025 until physical possession is delivered.

6. CONCLUSION & REFERENCE TO PRIOR SUBMISSIONS

6.1 I have already filed comprehensive submissions on the UP RERA portal e.g.

- Copy of Receiving Receipt of Rebuttal to Builder's Response (**Annexure B**)
- Copy of Receiving Receipt of Written Argument (**Annexure C**)
- Copy of Receiving Receipt of Written Argument (**Annexure D**)

6.2 The Respondent-Builder has not only failed to comply with the interim order dated 09.07.2025 but has also misrepresented facts before this Hon'ble Authority in an attempt to frustrate the rights of a genuine homebuyer who paid a premium for F-Block amenities.

6.3 I request the **Hon'ble Authority** to uphold the sanctity of its orders and ensure **immediate justice**.

Enclosures:

Annexure A – Copy of Rera Order- ***Proof of binding direction issued under Sections 38 and 40 of UP RERA Act, 2016*** mandating submission of compliance documents by 24.07.2025 and delivery of physical possession of unit F-1103 by 08.10.2025, establishing the Builder's wilful non-compliance with statutory obligations and rendering their purported cancellation legally untenable.

Annexure B- Copy of Receiving Receipt of Rebuttal to Builder's Response (Dated: 28.08.2025) - ***Proof of timely submission to RERA documenting comprehensive rebuttal of Builder's false claims regarding cancellation***, NOC application, and service of notices, establishing the Complainant's procedural compliance ***with Section 34 of UP RERA Act, 2016 and Rule 24 of UP RERA Rules, 2017 while exposing the Builder's misrepresentations before the Authority.***

Annexure C- Copy of Receiving Receipt of Written Argument (Dated: 25.07.2025) - ***Proof of timely submission to RERA documenting the Builder's non-compliance with the interim order dated 09.07.2025***, establishing the Complainant's adherence to procedural requirements ***under Section 34 of UP RERA Act, 2016 and Rule 24 of UP RERA Rules, 2017 while providing evidentiary foundation for subsequent enforcement proceedings.***

Annexure D- Copy of Receiving Receipt of Written Argument (Dated: 10.05.2024)- ***Proof of timely submission to RERA documenting the Builder's unlawful return of Recovery Certificate issued on 17.03.2023 (Rs. 14,53,215.78)***, establishing the Complainant's compliance with procedural requirements and pursuit ***of legal remedies for enforcement under Section 8 of UP RERA Act, 2016.***

Annexure E-Copy of No Dues Certificate (28/05/2017)- ***Proof that all dues were paid up to this date (95% of Basic Sale Price)***, establishing the absence of any genuine outstanding amount and rendering the Builder's purported cancellation legally ***untenable under Section 18 of UP RERA Act, 2016.***

Annexure F - Last Demand Letter Email and Response (01.02.2024,11.02.2024)- ***Proof of sole valid communication from Builder (contradicting claims of "repeated demands")***, ***establishing legal invalidity of demand due to retrospective due date (31.01.2024) preceding*** communication date (01.02.2024), and demonstrating proper response referencing Recovery Certificate issued on 17.03.2023 for adjustment of alleged dues, which ***Builder deliberately ignored in violation of Rule 7(3) of UP RERA Rules, 2017.***

Annexure G - Copy of Last Demand Letter - ***Proof of invalid service at obsolete address (vacated since 2012)*** despite full payment of 95% Basic Sale Price and prior notification of current address, ***rendering the demand legally untenable under Rule 7(3) of UP RERA Rules, 2017.***

Annexure H - Copy of UPSIC Defaulter News Clippings (Times of India 13.05.2025 & Navbharat Times 30.06.2025)-***Proof of builder's defaulter status with UPSIC, establishing ineligibility to apply for NOC under Regulation 12(3) of UPSID Rules, 2012 and contradicting their false claim of having "applied for NOC" before RERA, thereby constituting contempt under***

Section 38 of UP RERA Act, 2016 and rendering their purported compliance with possession requirements legally untenable.

Annexure I- NOC Not Applied for F Block - Proof from official UPSIC NOC Register showing no application filed by Builder for F-Block, La Galaxia between 01.01.2025 and 09.07.2025 (date of RERA order), contradicting **their false claim of having "applied for NOC" and establishing contempt under Section 38 of UP RERA Act, 2016**

Annexure J- Copy of Price List (Dated: 16.08.2012) - Proof of premium payment for F-Block amenities as designated in official price list, establishing the Builder's contractual obligation to provide enhanced features which remain undelivered despite full payment (95% of Basic Sale Price), thereby constituting breach of agreement and fraudulent misrepresentation under **Section 18 of UP RERA Act, 2016.**

Annexure K- Builder's Email (Dated: 01.12.2015)-**Proof of false representation claiming "wooden flooring is on progress"** when project was demonstrably incomplete, establishing a pattern of deceptive practices **under Rule 24 of UP RERA Rules, 2017 and constituting contempt under Section 38 of the Act.**

Annexure L- email of home vacant- **Proof of non-residency at registered address during critical periods**, specifically confirming absence during alleged notice periods when the Builder claims to have served communications, thereby invalidating purported service of **notices under Rule 7(3) of UP RERA Rules, 2017** which requires service at the "last known address or email ID of the allottee."

Annexure M- Update to Builder Regarding Address Updating - Proof of formal request dated [Date] for updating current address with Builder, demonstrating their wilful refusal to maintain accurate contact information despite documented requests, **thereby invalidating subsequent purported notices under Rule 7(3) of UP RERA Rules, 2017 which mandates service at the "last known address or email ID of the allottee."**

Annexure N- Follow Up Communication with Builder - Proof of continued attempts to update address and receive project status, demonstrating Builder's wilful ignorance of current contact details despite documented requests, thereby invalidating purported notices under Rule 7(3) of UP RERA Rules, 2017 which requires service at the "last known address or email ID of the allottee."

Annexure O- Flat Status as on 31.08.2025-**Proof of current project status showing incomplete construction and failure to deliver possession as directed by RERA order dated 09.07.2025**, establishing the Builder's ongoing non-compliance with statutory obligations and rendering their purported cancellation legally untenable

Yours faithfully,

Neeraj Vohra

Complainant

Contact: 9871037773

Complaint No.: NCR144/10/62470/2020

उ.प्र. भू-सम्पदा विनियमनक प्राधिकरण

क्षेत्रीय कार्यालय, गौतमबुद्धनगर।

सुनवाई पीठ-न्यायनिर्णायक अधिकारी,

कार्यवाही अन्तर्गत धारा-38/40/63 सपठित नियम-24

16-शिकायत संख्या:-NCR144/10/62470/2020

नीरज वोहरा

बनाम

न्यूटेक प्रमोटर्स एंड डेवलपर्स प्राइवेट लिमिटेड

आदेश-पत्र

दिनांक: 09.07.2025

शिकायतकर्ता का वाद वीडियो कॉन्फ्रेंसिंग के माध्यम से प्रस्तुत किया गया। पत्रावली पेश हुई। पुकार पर शिकायतकर्ता स्वयं उपस्थित हुए। विपक्षी की ओर से विद्वान अधिवक्ता श्री सी.के. झा उपस्थित हुए।

उभयपक्षों को सुना गया एवं पत्रावली का अवलोकन किया गया। शिकायतकर्ता द्वारा अवगत कराया गया है कि विपक्षी द्वारा अभी तक यूनिट का कब्जा नहीं दिया गया है और न ही हस्तान्तरण विलेख निष्पादित एवं पंजीकृत कराया गया है।

विपक्षी द्वारा इस पीठ के आदेश दिनांक 09.10.2024, 28.01.2025 एवं 17.04.2025 के अनुपालन में कब्जा प्रस्ताव-पत्र वैध ओ.सी./सी.सी. सहित बकाया देयों की मांग सहित शिकायतकर्ता को प्रेषित नहीं किया गया है और न ही आज तक माननीय रेरा पीठ-01ए द्वारा पारित आदेश 12.10.2021 के अनुपालन में विपक्षी द्वारा शिकायतकर्ता को यूनिट का कब्जा उपलब्ध कराया गया है और न ही रजिस्ट्री कराई गई है और न ही ओ.सी./सी.सी. की प्रति विपक्षी द्वारा रेरा पोर्टल पर अपलोड की गई है। जिससे स्पष्ट है कि विपक्षी द्वारा माननीय रेरा प्राधिकरण के आदेशों की अवहेलना की जा रही है और विपक्षी आदेश दिनांकित 12.10.2021 के अनुपालन में कोई रुचि नहीं ले रहा है। अतः इस सम्बन्ध में विपक्षी पर आदेश का अनुपालन न करने के कारण धारा-63 भू-सम्पदा (विनियमन एवं विकास) अधिनियम-2016 के अन्तर्गत अर्थदण्ड/पेनल्टी अधिरोपित किया जाना आवश्यक होगा।

माननीय रेरा पीठ-01ए द्वारा पारित आदेश दिनांक 12.10.2021 के क्रम में प्रस्तुत पत्रावली पीठ के आदेश के उल्लंघन की बाबत धारा-63 के अन्तर्गत अर्थदण्ड अधिरोपित हेतु प्राधिकरण के समक्ष पेश हो। आदेश की एक प्रति श्रीमान सचिव, रेरा को इस आशय

✓

से प्रेषित की जाये कि वह विपक्षी पर धारा-63 के अन्तर्गत अर्थदण्ड/पेनल्टी अधिरोपित करने हेतु पत्रावली को रेरा प्राधिकरण के समक्ष पेश करें।

विपक्षी को अंतिम अवसर देते हुए निर्देशित किया जाता है कि वह माननीय रेरा पीठ के आदेश के अनुपालन में कब्जा प्रस्ताव-पत्र वैध ओ.सी./सी.सी. सहित बकाया देयों की मांग सहित (यदि कोई हो तो) शिकायतकर्ता को 15 दिनों के अन्दर प्रेषित करना सुनिश्चित करें तथा रेरा पोर्टल पर भी अपलोड करना सुनिश्चित करें। शिकायतकर्ता द्वारा बकाया देयों के अदा करने पर विपक्षी शिकायतकर्ता को यूनिट का भौतिक कब्जा उपलब्ध कराते हुए शिकायतकर्ता के पक्ष में आवंटित यूनिट की रजिस्ट्री कराना सुनिश्चित करें। शिकायतकर्ता को यदि कोई आपत्ति हो, तो वह अपनी आपत्ति गणना शीट सहित दाखिल कर सकता है। आदेश का अनुपालन न करने पर सिविल प्रक्रिया संहिता के आदेश-21 के अन्तर्गत कार्यवाही करते हुए यूनिट को कुर्क कर, रिसीवर नियुक्त कर स्वयं इस न्यायालय द्वारा शिकायतकर्ता को यूनिट का कब्जा दिलाया जायेगा और रजिस्ट्री करायी जायेगी पत्रावली अग्रिम सुनवाई हेतु दिनांक 08.10.2025 को पेश हो।


आर. पी. सिंह

(न्यायनिर्णायक अधिकारी)

उ.प्र. भू-सम्पदा विनियामक प्राधिकरण

Annexure B- Copy of Receiving Receipt of Rebuttal to Builder's Response (Dated: 28.08.2025) - Proof of timely submission to RERA documenting comprehensive rebuttal of Builder's false claims regarding cancellation, NC application, and service of notices, establishing the Complainant's procedural compliance with Section 34 of UP RERA Act, 2016 and Rule 24 of UP RERA Rules, 2017 while exposing the Builder's misrepresentations before the Authority.

REBUTTAL TO BUILDER'S FALSE CLAIMS

BEFORE THE UTTAR PRADESH REAL ESTATE REGULATORY AUTHORITY, GAUTAM
BUDDHA NAGAR- Complaint No. NCR144/10/62470/2020

To, ADJ Bench Neeraj Vohra
The Secretary,
Uttar Pradesh Real Estate Regulatory Authority (UP RERA),
H-169, Sector Gamma-2, Greater Noida, Gautam Buddha Nagar.

Subject: Rebuttal to Builder's False Claims – Complaint No. NCR144/10/62470/2020

Respected Sir/Madam,

I, Neeraj Vohra, Complainant, submit this concise rebuttal to the false claims made by M/s Newtech Promoters and Developers Pvt. Ltd. (the "Builder") in response to RERA's binding order dated 09.07.2025, which directed the Builder to deliver possession of unit F1103 by 08.10.2025.

I. BUILDER'S FALSE CLAIMS: LEGAL REBUTTAL

- False Claim of Unit Cancellation:

- Builder's Statement:

- "That in light of the complainant's continued default and non-compliance, the promoter has lawfully cancelled the allotment of the unit vide letter dated 12.06.2024."

- Factual & Legal Rebuttal:

- No valid cancellation under RERA: Section 18(1) mandates promoter liability for delay, not allottee liability. As held in M/s Golden Square Realtors Pvt. Ltd. v. Satish Kumar (UP RERA Case No. NCR123/05/54321/2022):
 - "The promoter cannot cancel the allotment unilaterally by sending demand letters. Any such cancellation is null and void unless approved by RERA."
 - No Dues Certificate dated 28.05.2017 (Annexure-A) explicitly states.
 - "This is to inform you that you have completed your outstanding amount till date against your booked flat F-1103 in La Galaxia project and not having any due amount till date."

- False Claim of Outstanding Dues

- Builder's Statement:

Neeraj Vohra

WRITTEN ARGUMENT

To,
The Secretary,
Uttar Pradesh Real Estate Regulatory Authority (UP RERA),
H-169, Sector Gamma-2, Greater Noida, Gautam Buddh Nagar.

Subject: **Violation of Order Dated 09.07.2025 and False Representation by M/s Newtech Promoters and Developers Pvt. Ltd. – Complaint No. NCR144/10/62470/2020**

Respected Sir/Madam,



2. THE BUILDER'S SPECIFIC VIOLATIONS OF RERA ORDER DATED 09.07.2025

This Honourable Authority's order dated 09.07.2025 specifically directed:

1. The Builder to submit compliance documents within 15 days (by 24.07.2025) as per Sections 38/40/63 and Rule 24 of UP RERA Rules, 2017; and
2. The Builder to deliver physical possession of unit F1103 by 08.10.2025.

Despite these clear directives, the Builder has:

- **Failed to submit any compliance documents** by the 15-day deadline of 24.07.2025.
- **Made false representations during the last hearing** claiming they "applied for NOC from UPSIC"; and
- **Failed to deliver possession** by the stipulated deadline of 08.10.2025.

Legal Violations

The Builder's actions violate:

1. Section 38: Making false statements before RERA constitutes contempt of the Authority (RERA has powers similar to a civil court).
2. Section 40: False representation impedes proper delegation of compliance verification.
3. Section 63: Directors are personally liable for the Builder's false claims.
4. Rule 24: Mandates truthful disclosure during proceedings (violated by the Builder's false statement).

Annexure D- Copy of Receiving Receipt of Written Argument (Dated: 10.05.2024)- Proof of timely submission to RERA documenting the Build unlawful return of Recovery Certificate issued on 17.03.2023 (Rs. 14,53,215.78), establishing the Complainant's compliance with procedural requirements and pursuit of legal remedies for enforcement under Section of UP RERA Act, 2016.

By Hand

10 May, 2024

To
Shri ~~Rajiv Kumar~~ **A.K. Raghav**
Chairman **Deputy Secretary**
Bench 1A
UP RERA, Local Office - II 169
Sector Gama - 2, Dist: Gautam Budh Nagar
Greater Noida -201301

Sub: Request for Re-Issue RC of principal amount with interest.

Dear Sir,

This is w.r.t RC issued on 17/03/2023 by RERA of Rs:(14,53,215.78) till 28/02/2023 against complaint No. NCR144/10/62470/2020, Complainant **Neeraj Vohra** Vs Respondent **M/s Newtech Promotorers and Developers Pvt Ltd.**

Respondent **M/s Newtech Promotorers and Developers Pvt Ltd.** Was supposed to hardcover the possession with interest of the unit F1103 by 30/04/2024 under section 8 so respondent has return the Issued RC.

As of today 10/05/2024, I have not received any information regarding possession and interest from the Respondent **M/s Newtech Promotorers and Developers Pvt Ltd.** However, received a demand letter on 01/02/2024 against which I responded that deduct from issued RC.

I am paying Rs 26000/month rent which is very difficult to manage for me, waiting possession since last 10 years.

I have humble request to RERA kindly re-issue the Recovery Certificate till date as per RERA guidelines.

Thanking you

Yours faithfully,

(NEERAJ VOHRA)

Allottee of Flat No. F1103, LA Galaxia

Mb - 9871037773

Date Of Booking: 14/07/2012

Date of Builder Buyer Agreement: 27/10/2012

Date Of actual possession as per agreement: 03/01/2016

Date Of possession as per RERA order: 31/12/2021

Date Of possession as per RERA Notice: 01/01/2022

Date Of RC Issued: 17/03/2023 (returned by builder under section 8)

Date Of possession as per section 8: 30/04/2024

Encls:

Copy of RC Issued on 17/03/2023

Annexure E-Copy of No Dues Certificate (28/05/2017)- Proof that a dues were paid up to this date (95% of Basic Sale Price), establishing the absence of any genuine outstanding amount and rendering the Builder's purported cancellation legally untenable under Section 18 UP RERA Act, 2016

Neeraj Vohra

From: Neeraj Vohra <neerajvohra2004@yahoo.com>
Sent: 06 November 2019 14:14
To: Neeraj Vohra
Subject: Fw: Regading outstanding amount till date against your booked flat F-1103 in La Galaxia project

----- Forwarded message -----

From: "joni@newtechgroup.co" <joni@newtechgroup.co>
To: "neerajvohra2004@yahoo.com" <neerajvohra2004@yahoo.com>
Sent: Sunday, 28 May, 2017, 05:48:11 pm IST
Subject: Regading outstanding amount till date against your booked flat F-1103 in La Galaxia project

Respected Sir,

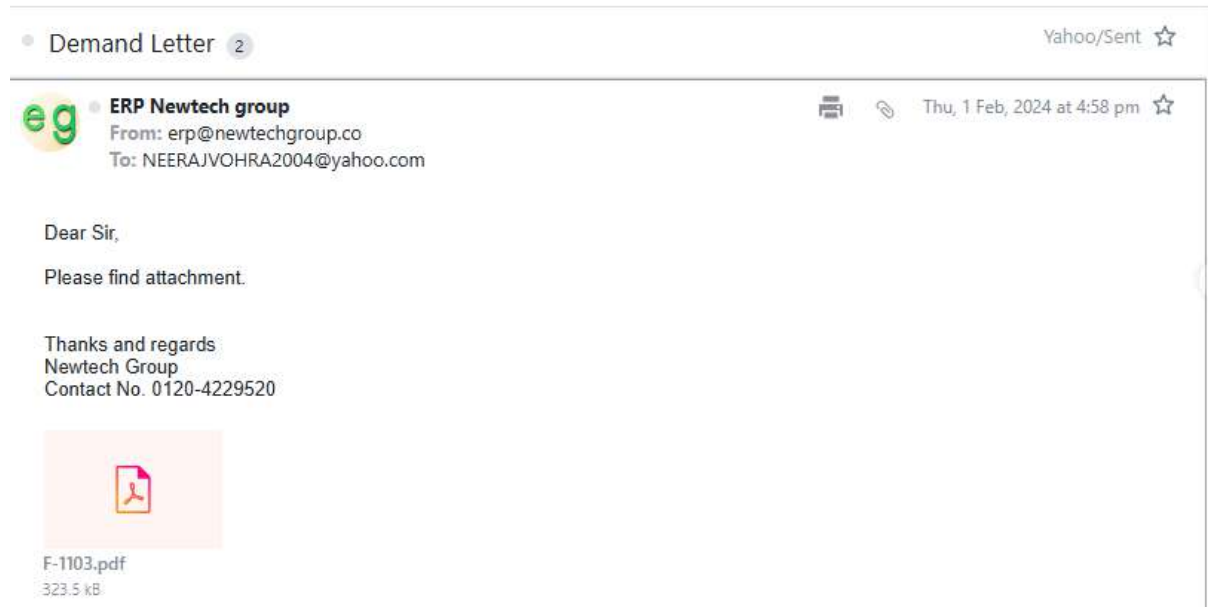
This is inform you that you have done completed your outstanding amount till date against your booked flat F-1103 in La Galaxia project and not having any due amount till date. Next demand will be raised on top floor casting.

Thanks & Regards
Joni Chauhan
Newtech La Galaxia
9650109062

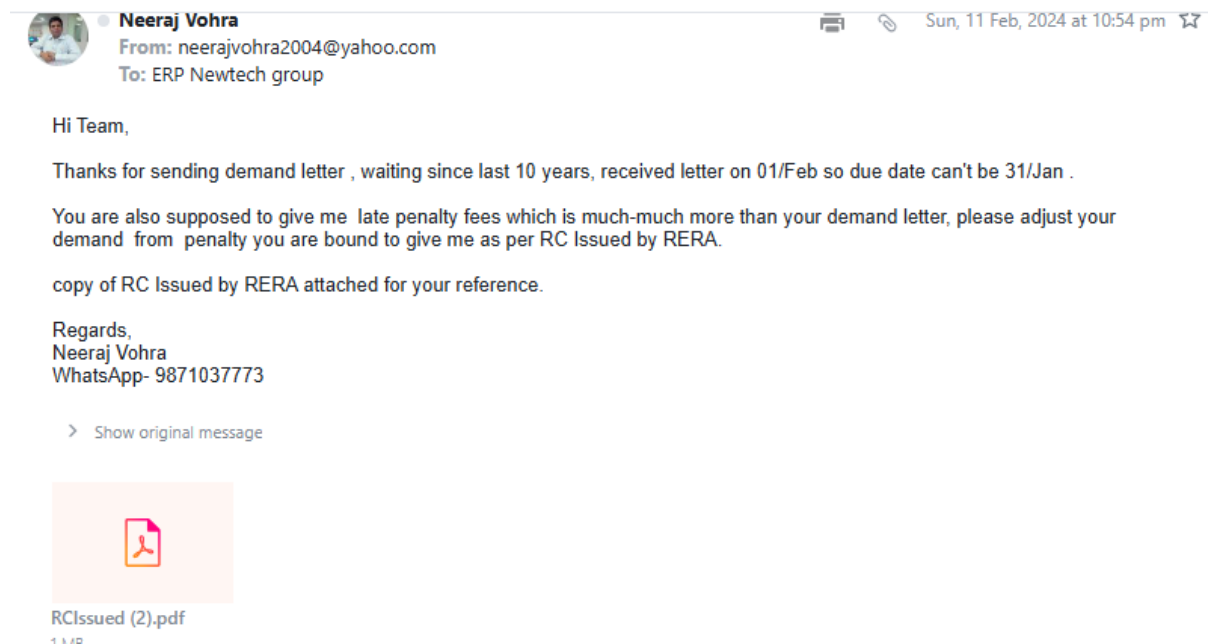
Annexure F - Last Demand Letter Email and Response (01.02.2024,11.02.2024
Proof of sole valid communication from Builder (contradicting claims of "repe
demands"), establishing legal invalidity of demand due to retrospective due c
(31.01.2024) preceding communication date (01.02.2024), and demonstrating
proper response referencing Recovery Certificate issued on 17.03.2023 for
adjustment of alleged dues, which Builder deliberately ignored in violation of
7(3) of UP RERA Rules, 2017.

Email correspondence (01.02.2024-11.02.2024)

Demand Letter email : Received On 01/02/2024 (RC Issued on 17/03/2024)



Response Mail: on 11/02/2024 (ask to adjust with RC amount)



Customer ID: NT/GLX/F 1103
Mr. Neeraj Vohra
3T/308 AWHO, GURJINDER VIHAR, GREATER NOIDA
(M): 9871037773, 9871037773
Email: NEERAJVOHRA2004@yahoo.com

M/s Aashiyana Promoters & Developers
Pvt. Ltd.
Regd. Office: Unit 219, S/F, Vasundhara
Enclave, Plot No. 1, Vardhman Sunrise Plaza
LSC, Delhi - 110096
Tel: 9818849921
Email: info@newtechgroup.co
Web: www.newtechgroup.co
State: Uttar Pradesh
State Code: 09
GSTIN: 09AAGCA3211J1ZW
CIN No.: U45400DL2007PTC163513
Dated: 31 Jan 2024

Cust. ID.: NT/GLX/F 1103 PROVISIONAL INVOICE To, Mr. NEERAJ VOHRA R/o 3T/308 AWHO, GURJINDER VIHAR, GREATER NOIDA Mobile no.: 9871037773
Booking Date: 15 Sep 2012 Subject : Request for payment towards your Unit No. F-1103 having Super Area of approx 1395 Sq.ft Booked at "Newtech La Galaxia" at Plot No. HRA-11, Surajpur Site C, Phase-II, Gr. Noida. Dear Customer, You have been allotted a Unit No. F-1103 on 11th Floor in Tower-F being developed on Plot No. HRA-11, Surajpur Site C, Phase-II, Gr. Noida. You have booked the referred Unit in "Newtech La Galaxia" Group Housing Complex under Flexi Payment Plan payment plan.

S. No.	Particulars	Head	Receivable						Total Installment
			Due Date	Installment	S.Tax	CGST	SGST	GST	
1	ON START OF PLASTER WORK	Dual Meter Charges	31 Jan 2024	12,500	0	750	750	1,500	14,000
2		IFMS		17,438	0	0	0	0	17,438
3		Lease Rent		59,288	0	3,557	3,557	7,114	66,402
4		Other Charge		37,500	0	2,250	2,250	4,500	42,000
5		Park or Road or Corner Facing		34,875	0	2,093	2,093	4,186	39,061
6	Previous Dues			31,03,800	98,949	9,311	9,311	18,622	32,21,371
	Total Receivable Amount			32,65,401	98,949	17,961	17,961	35,922	34,00,272
	Total Received Amount								₹ 30,47,559
	Total Outstanding Amount								₹ 3,52,713
	Total Outstanding Amount (In Words)			Rupees Three Lakh Fifty Two Thousand Seven Hundred Thirteen Only.					

Your demand due date is 31 Jan 2024, we are requested to remit the total dues of Rs. 3,52,713/- (Rupees Three Lakh Fifty Two Thousand Seven Hundred Thirteen Only) in favour of AASHIYANA PROMOTERS AND DEVELOPERS PVT. LTD. Payable at Noida within 10 days to avoid panel interest.
RTGS/NEFT Detail.

A/c Name - Aashiyana Promoters and Developers Pvt. Ltd.
Account No. - 002110600000748
Bank Address - Sector - 31, Noida
IFSC Code - ZSBL0000211
Bank Name - Zila Sahkari Bank Ltd. Ghaziabad

Kindly note that in case of non-receipt of due amount within stipulated time, interest @18 % p.a. shall be charged as per company's policy on the delayed payments.

Thanking you & assuring you of our best services always.

for AASHIYANA PROMOTERS AND DEVELOPERS PVT. LTD.

(This is computer generated letter hence no signature required)

Note:

- This invoice is provisional, for any delayed in payment interest will be charged 18 % p.a. which will be calculated & communicated separately, and the final interest (if Any) will be Calculated at the time of receiving NOC.
- Helpline No. 9818849921
- Please ignore this letter in case, the payment has been already made.
- Any delay in payment head of tax will be charge @ 48% per month. (Maximum)*

Annexure H - Copy of UPSIC Defaulter News Clippings (Times of India 13.05.2025 & Navbharat Times 30.06.2025)-Proof of builder's defaulter status with UPSIC, establishing ineligibility to apply for NOC unde Regulation 12(3) of UPSID Rules, 2012 and contradicting their false claim of having "applied for NOC" bef RERA, thereby constituting contempt under Section 38 of UP RERA Act, 2016 and rendering their purport compliance with possession requirements legally untenable.

UPSIC Defaulter:

Navbharat Times (30/06/2025)

नोएडा

फटाफट खबरें

ल्वर सिटी-2 के अध्यक्ष बने विशाल

रुपये जमा नहीं कर रहे बिल्डर, हजारों फ्लैटों की रजिस्ट्री रुकी

खुले हुए फ्लैट की दिखावा शौल, कानिटी पर सवाल

कई बिल्डरों के ऊपर लीजडीड का बकाया

मे हुई नृप कथक वक्राण

सेक्टर-30 में NBT के संवाद कार्यक्रम में लोगों ने साझा की समस्याएं

गौड़ सिटी-1 के बेसमेंट में लीकेज से दिक्कत

कार्यक्रम का समापन

Times Of India (13/05/2025)

8,000 flat registries in 9 Gr Noida projects stuck over Rs 400cr dues, seesaw over FAR | Noida News - Times of India

8k flat registries in 9 projects stuck over ₹400cr dues, seesaw over FAR

No Consensus In UPSIDA Over Revised FAR For 10 Years Delays Completion Certs

Aditya.Dev@timesofindia.com

4 PROJECTS STALLED

Project	Dues	Number of Flats
Migsun Green Mansion	Nil	553 (registration process on)
E Homes	₹1.4 cr	490 (registration of 119 pending)
Shivam Homes	₹44 lakh	425 (CC pending)
La Galaxia	₹6.5 cr	525 (2 of 7 towers incomplete)
Venetia Heights	₹12 cr	485 (241 delivered)
Golf Foreste	₹91.7 cr*	3,102 (partial CC for 1,988 villas)
Ek Dant	₹24 cr	502 (construction halted, project in NCLT)
JVK Developers	₹88 cr	1,098 (no construction, project in NCLT)
Ansul Housing & Construction Ltd	₹43.3 lakh	850 planned (site vacant, no lease deed)
Divine Conbuild Pvt Ltd	₹37 cr	Not specified (12-acre plot undeveloped)

Noida: Over 8,000 buyers who invested in nine group housing projects under Uttar Pradesh State Industrial Development Authority (UPSIDA) in Greater Noida continue to wait for the registration of their properties over dues exceeding Rs 400 crore, incomplete towers, legal hurdles and an impasse over Floor Area Ratio (FAR).

While land parcels for the projects were allotted between 2007 and 2011 when Greater Noida offered a 2.75 FAR, developers redrew maps and got them vetted by UPSIDA again after FAR was increased to 3.5 in 2013.

FAR is a ratio of the area on which a building can be constructed to the area of the plot. A FAR of 2.75 means that for every 100 sqm of plot, a building of 275 sqm can be constructed.

Four projects remain entirely stalled. These are Ek Dant by Alpine Realtech Ltd, where 502 buyers are affected, and JVK Developers' project affecting nearly 1,100. Both projects are under NCLT.

No construction has started on a five-acre plot allotted to Ansul Housing & Construction Ltd with an FAR of 2.75, and an additional purchasable 0.75 remains. UPSIDA is considering cancelling the allotment over non-compliance. Another 12-acre plot, allotted to Divine Conbuild Pvt Ltd, remains undeveloped.

Annexure I- NOC Not Applied for F Block - Proof from official UPSIC NOC Register showing no application filed by Builder for F-Block, La Galaxia between 01.01.2025 and 09.07.2025 (date of RERA order), contradicting their false claim of having "applied for NOC" and establishing conte under Section 38 of UP RERA Act, 2016

NOC not applied for F Block



Annexure J- Copy of Price List (Dated: 16.08.2012) - Proof of premium payment for Block amenities as designated in official price list, establishing the Builder's contractual obligation to provide enhanced features which remain undelivered despite full payment (95% of Basic Sale Price), thereby constituting breach of agreement and fraudulent misrepresentation under Section 18 of UP PRA Act, 2016.

Price List

w.e.f. Aug. 16, 2012

Flat Type:

TYPE OF FLAT	SPECIFICATION	AREA	TYPE OF FLAT	SPECIFICATION	AREA
2BHK	2BHK-2 Toilets	895 sq-ft.	3BHK	3BHK+2Toilets + Pooja Room + Terrace	1395 sq-ft.
3BHK	3BHK+2 Toilets (Small)	1195 sq-ft.	3BHK	3BHK+4Toilets + Servant + Pooja Room+ Terrace	1845 sq-ft.

FLOORS	FLEXI (Rs. /sq-ft.)	OTHER CHARGES	TOTAL	FLOORS	FLEXI (Rs. /sq-ft.)	OTHER CHARGES	TOTAL
1 st	2480	100	2580	11 th	2290	100	2390
2 nd	2460	100	2560	12 th	2280	100	2380
3 rd	2440	100	2540	13 th	2270	100	2370
4 th	2420	100	2520	14 th	2260	100	2360
5 th	2400	100	2500	15 th	2250	100	2350
6 th	2380	100	2480	16 th	2240	100	2340
7 th	2360	100	2460	17 th	2230	100	2330
8 th	2340	100	2440	18 th	2220	100	2320
9 th	2320	100	2420	19 th	2210	100	2310
10 th	2300	100	2400				

❖ For Booking In Tower F Rs 200/ sq ft Extra from Above Price List

- ✓ PLC for Park or Road or Corner Facing (if applicable) Rs. 50/ sq-ft.
- ✓ PLC for Corner + Park Facing (if applicable) Rs. 75/sq-ft.

NOTE:

- Above Prices are inclusive of EEC, FFC, Club Membership, and 1 KVA Power Backup.
- Covered Car Parking of Rs.1, 50,000/- (Mandatory).
- IFMS @ Rs.25/sq-ft., Lease Rent@85/sq-ft. & Dual Meter Charges Rs.25000/- will be charge extra.
- Additional Power Backup Rs.15000/KVA.
- Service tax @ 3.09 % will be charged extra.
- For CLP Plan (+Rs.100/sq-ft.), for DP Plan (+Rs.100/sq-ft) and for Subvention Plan (+Rs.150/sq-ft.).
- DD/CHEQUE to be drawn in favour of
"AASHIYANA PROMOTERS AND DEVELOPERS PRIVATE LIMITED"
 Payable at Delhi.

49,

49, 44, 325

Hy

Neeraj Vohra

From: Neeraj Vohra <neerajvohra2004@yahoo.com>
Sent: 06 November 2019 14:53
To: Neeraj Vohra
Subject: Fw: Regarding alteration in the flats of Newtech La Galaxia

Annexure K- Builder's Email (Dated: 01.12.2015)-Proof of false representation claiming "wooden floor on progress" when project was demonstrably incomplete, establishing a pattern of deceptive practice under Rule 24 of UP RERA Rules, 2017 and constituting contempt under Section 38 of the Act."

----- Forwarded message -----
From: mkt@newtechgroup.co <mkt@newtechgroup.co>
To: "" <>
Sent: Tuesday, 1 December, 2015, 03:46:09 pm IST
Subject: Regarding alteration in the flats of Newtech La Galaxia

Dear Sir/Madam,

Greetings from Newtech Group!!

This is to inform you that we have started the finishing work in our project "Newtech La Galaxia", Surajpur Site-C, Greater Noida. So, you are requested to please inform to us for our civil team about the alteration of **Wooden Flooring/ Vitrified Tiles in master bed room**, to be done in your flat, So that we can make the alteration which is possible.

For this alteration details, please mark a mail to (mkt@newtechgroup.co and joni@newtechgroup.co)

Regards,

Newtech Promoters and Developers Pvt. Ltd.

Thanks & Regards

Marketing Team
Newtech Group
H-190, Ground Floor,
Sector-63, Noida-201301 (U.P), INDIA
Tel. : 0120-4560421/22

3T-308 (Vacant Confirmation)

Annexure L- email of home vacant- Proof of non-residency at registered address during critical periods, specifically confirming absence during alleged notice periods when the Builder claims to have served communications, thereby invalidating purported service of notices under 7(3) of UP RERA Rules, 2017 which requires service at the "last known address" email ID of the allottee."

From: Neeraj Vohra (neerajvohra2004@yahoo.com)

To: chetanhimani@yahoo.com

Cc: awhotownshipgn@gmail.com

Date: Tuesday 11 August, 2015 at 11:41 am IST

Dear Sir,

As discussed, I am vacating your house number 3T-308 on 22/23rd Aug 2015 and will pay rent till 31st Aug.

Today I went to AWHO office; As per AWHO tenant verification initiation process, your confirmation that you are aware that I am vacating your house 3T-308 required. (I am shifting in AWHO society).

Really appreciate if you can send the vacant confirmation to office so that they can initiate screening process. Final settlement we will do once you will be here on 22/23 Aug as per your convenient.

Thanks,
Neeraj Vohra

request for Address Change and Sliding Windows at F1103

Annexure M- Update to Builder Regarding Address Updating - Proof of formal request [Date] for updating current address with Builder, demonstrating their wilful refusal to provide accurate contact information despite documented requests, thereby invalidating subsequent purported notices under Rule 7(3) of UP RERA Rules, 2017 which mandates service at the "last known address or email ID of the allottee."

From: Neeraj Vohra (neerajvohra2004@yahoo.com)

To: joni@newtechgroup.co

Date: Wednesday 18 November, 2015 at 05:53 pm IST

Dear Joni,

I would like to inform you that My Current Address is change, Please Update the same in Your record also.

Updated Address:

**4S/403, AWHO Gurjinder Vihar
Greater Noida-201310**

Apart from that I also request to you , I prefer Windows in my Flat F1103

Regards,
Neeraj Vohra
F1103
9871037773

Annexure N- Follow Up Communication with Builder - Proof of continued attempt to update address and receive project status, demonstrating Builder's wilful ignorance of current contact details despite documented requests, thereby invalidating purporting notices under Rule 7(3) of UP RERA Rules, 2017 which requires service at the "last known address or email ID of the allottee."

From: Neeraj Vohra (neerajvohra2004@yahoo.com)

To: joni@newtechgroup.co; crm@newtechgroup.co

Date: Thursday 24 August, 2017 at 08:19 pm IST

>
>
>
>
>

Date: 23-Aug-2017
Neeraj Vohra
4S/403, AWHO GURJINDER VIHAR GREATER NOIDA
UP-201310

> Mr. Sanjeev Kumar
> Managing Director,
> M/s Newtech Promoters and Developers Private Limited
> Newtech La Galaxia
> Plot No.: HRA-11, Surajpur Site C (Extension), Phase II,
> Greater Noida UttarPradesh-201306

> Subject: AWAITING POSSESSION OF FLAT AND PAYMENT OF COMPENSATION DUE TO DELAY IN POSSESSION

> Sir,

> 1. I, Neeraj Vohra S/O Shri Vijay Kumar Vohra, have been allotted unit no.F-1103 at your La-Galaxia project sited at PlotNo.HRA-11, Group Housing Sector Surajpur

> Site-C (Extension), Phase-II, Greater Noida, under CLP from Corporation Bank and during booking time it was promised by Mr. Sanjeev Kumar that La-Galaxia project is going ahead of schedule and we will be able to offer possession before completion of two years i.e. April 2014.

> 2. It is further to your kind notice that as per Para19 (a) of the Allotment cum Buyer

> Agreement signed between Mr. Sanjeev Kumar, as director/authorized signatory on behalf of Aashiyana Promoters and Developers Private Limited and Self on 27th OCT 2012 at La-Galaxia Site Greater Noida, that you shall complete the construction/Development of Flat within 30 months from the date of starting of excavation/signing of Agreement, which may vary for ± 6 months. It is also mentioned in Para19(c) of the Allotment cum Buyer agreement, signed on 27th OCT 2012, that "In case of delay in Construction of the Flat for reasons other than force majeure condition, the developer shall Pay a sum at the rate of Rs5/- (Rupees five only) per sq. ft. Of super area per month for the delayed period which shall include of any/all damages, compensation, claims for delayed possession".

> 3. As per Notification No.1438_Eight-3-16-65 Vividh16 dated 27th October 2016, Uttar Pradesh has notified the Uttar Pradesh Real Estate (Regulation and Development) Rules, 2016 which is available on website of National Real Estate Development Council

> (NAREDCO) under the link of Govt.Notifications/Circulars. As per Chapter1 Para2 (h) of the rules the "Ongoing Project" means a project where development is going on and for which completion certificate has not been issued. This implies that the project of "La Galaxia" comes under the ambit of RERA.

> 4. As per Allotment cum Buyer Agreement signed on 27th OCT 2012 at La-Galaxia Site Greater Noida, it is approx. 5 years have passed after signing the said agreement.

> Hence, you are liable to pay @ 24% per annum of total cost of the project as the same is supposed to be Charge on me due to delay of payments.

> 5. I have already paid almost the complete amount to you on time and applicable interest to the bank. I am required to pay an EMI of Rs. 31,000 each month for the home loan. I am struggling to manage money to pay hefty EMI/Rent/Child Fees/Monthly utilities. All this is causing me a lot of financial burden and mental agony.

> 6. From the past two years false promises of possession have been made and all committed date of possession were breached leading to financial and mental instability. It is requested to provide a firm date of possession of flat in written. Also pay the penalty amount for the delayed period that have passed and continue the penalty each month in future till the possession of flat is provided.

> 7. I would like to emphasize that on failing to communicate the possession date in written and payment of delayed penalty amount as per RERA I will be forced to initiate a legal action against the company.

> Yours sincerely,
> Neeraj Vohra
> F-1103



LaGalaxia -site.pdf
131.3 kB



LaGalaxia-corp.pdf
131.7 kB

Track on www.indiapost.gov.in

भारतीय डाक



India Post

SP KNOWLEDGE PARK-I <201310>

GSTN No: 09AAAGD0048F1Z

EUD842593581N

Counter No:2, OP-Code:012

To: SANJEEV KR, MD

IA SURATPUR, PIN:201306

From: NEERAJ, GR NOIDA

Wt:20grams, 25/08/2017, 12:53

Amt:18.00EDD(If not a holiday):00:00:00

,CGST @9% 1.5,SGST @9%: 1.50

भारतीय डाक



India Post

Track on www.indiapost.gov.in

Flat Status on 31/08/2025

Annexure O- Flat Status as on 31.08.2025-Proof of current project status showing incomplete construction and failure to deliver possession as directed by RERA order dated 09.07.2025, establishing the Builder's ongoing non-compliance with statutory obligations and rendering their purported cancellation legally untenable

